

-
File No.: EXP202317662

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 19, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against MAXPOWER FITNESS NUTRITION, S.L. (hereinafter the respondent). After notifying the initiation agreement and analyzing the allegations presented, on November 5, 2024, the proposal for resolution was issued, which is transcribed below:

<<

Procedure No.: EXP202317662 (PS/00235/2024)

PROPOSAL FOR RESOLUTION OF THE SANCTIONING PROCEDURE

BACKGROUND

FIRST: On 26/09/23, Ms. A.A.A. (the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint is directed against the entity MAXPOWER FITNESS NUTRITION, S.L. with NIF: B95763785, owner of the website <https://nutrisano.es/> (the respondent), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In her complaint, she states, among other issues, that the website <https://nutrisano.es/> does not comply with the requirements established by Law 34/2002, of July 11, on Information Society Services, regarding the "Cookie Policy."

SECOND: On 26/12/23, in accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency admitted the complaint filed by the complainant for processing.

THIRD: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679, of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following issues:

a).- On 22/01/24 and 05/02/24, a request for information was sent to the respondent company via the Notific@ system. Both notifications expired due to non-appearance.

b).- On 19/02/24, the request was reiterated by postal mail to the registered contact address on the Axesor platform: ***ADDRESS.1, resulting in "Absent in delivery."

c).- On 25/03/24, the request was reiterated to the postal address published on Google Maps for the NUTRISANO store in Bilbao: ***ADDRESS.2.

d).- On 25/03/24, two emails were sent to the contact addresses announced on their Facebook page and on their website: nutrisanotiendaonline@gmail.com and fullgasbilbao@gmail.com.

e).- On 11/04/24, a written response to the request was received, in which, among other issues, the following is stated:

- Regarding the measures adopted in relation to the facts presented in the complaint, they affirm that after notification by the AEPD, the following measures have been implemented: 1. "We have hired a new Data Protection service, with the specialized lawyer in the matter and Data Protection Officer, B.B.B.. 2. We have installed a new plugin system that offers a clearer and more accessible way to manage cookies. 3. We have updated and reviewed the legal notices available on the website, and especially, the Privacy Policy and the Cookie Policy, with a clear and complete indication of all cookies used (name, type of cookie, purpose, provider, and duration). 4. We have enabled a new communication channel to receive complaints regarding data protection, protecciondedatosnutrisano@gmail.com.

- Regarding the information provided by the banner concerning the privacy policy, they state the following: "The plugin installed on the website allows for easy, simple, and accessible management of

cookies. When a user first enters the website, a banner or plugin appears at the footer, offering the option to accept all cookies or reject them all. Consent for both options is free, and rejecting cookies does not impose any limitations on web browsing. Therefore, users can freely reject the installation of cookies. Additionally, through this plugin, users can also directly access the Cookie Policy, which is also available via a footer link, along with the Legal Notice and the Privacy Policy. The data of the data controller is included in the header of these texts, including the specific email created to receive complaints related to the protection of personal data. The Cookie Policy informs what a cookie is and what it is used for, about

3/26

the acceptance of cookies on this website, what types of cookies exist, how cookies can be modified according to the browser, and the specific list of cookies used by the website, indicating name, function, domain, duration, and purpose.

Currently, the website uses 10 different cookies:

- Analytical: 3 (_fbpfb, _landing_page, _shopify_ye09a8099)
- Session: 2 (Session27, secure_customer_sign)
- Preferences: 4 (popup-cookie, tracking_consent, localizationES, receive-cookie-deprecation1)
- Advertising: 1 (_cmp_a)
- Analytical: 3 (_fbpfb, _landing_page, _shopify_ye09a8099)

The duration of these cookies varies between simply the session, 1 year, or 2 years. Permanent cookies are not used. Additionally, the Privacy Policy informs about all personal data that is processed, as well as the purpose of the processing, the legal basis, the source of the data, and international transfers and assignments. It also informs about the rights held by individuals when providing data, and how they can exercise them, including the right to file a complaint with the AEPD and a link to the available form templates at the agency. The personal data processed is limited to identifying and contact data, banking data, purchase history, and data collected automatically through browsing.

FOURTH: On 23/05/24, the following characteristics of the "Cookie Policy" of the website

<https://nutrisano.es/> are obtained and recorded:

a).- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without accepting new cookies or taking any action on the webpage, it has been verified that the following cookies are used:

Technical or necessary cookies:

cookies

Domain

Description

_cmp_a

.nutrisano.es

Used to store the user's consent preferences.

receiver-cookie-deprecation

.nutrisano.es

Used to indicate to the website owner the deactivation of cookies received by the system.

keep_alive

.nutrisano.es

Used to keep a user's session active on a website.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/26

cookies

Domain

Description

Localization

nutrisano.es

Stores user preferences regarding language and region.

secure_customer_sig

nutrisano.es

Related to the customer's login.

Behavioral Targeting or Advertising cookies: these are those that store information about users' behavior obtained through continuous observation of their browsing habits, allowing the development of a specific profile to show advertising based on it:

cookies

Domain

Description

_tracking_consent

nutrisano.es

Shopify configures this cookie to store user preferences.

Cookies whose function has not been identified:

cookies

Domain

Notes

Popup-cookie

nutrisano.es

b).- Regarding the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal device of browsing history and cookies, without taking any action on the webpage, a cookie information banner appears with the following message:

We value your privacy

We use cookies and other technologies to personalize your experience, for marketing purposes, and to collect analytics. More information in the <>.

<>

<>

<>

If you choose to reject all cookies (<>), it is observed that the website continues to use the same cookies detected at the beginning of the session.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/26

If you choose to manage cookies granularly (<>), a control panel is displayed where it is observed that the cookie groups are not pre-checked. However, if you wish to not use any cookies that are not of a technical nature, by clicking on the option <> without having selected any of the cookie groups in this control panel, it is observed that the website continues to use the same cookies detected at the beginning of the session.

c).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

If the user has given initial consent for the website to use cookies that are not of a technical or necessary nature by clicking on the option <> present in the initial banner, or by checking the cookie groups that appear in the control panel, it is observed that the website begins to use new cookies of its own, in addition to those initially detected at the beginning of the session.

However, if you wish to modify that consent during web browsing, there is NO possibility to access the cookie control panel again to modify the consent, as there is no permanent link that enables this option.

Nevertheless, regarding this issue, the information provided in the "Cookie Policy" of the website,

<https://nutrisano.es/pages/data-sale-opt-out> indicates the following regarding the modification of consent:

(...) 5.- How can you modify cookies? In addition to selecting your option in the dropdown menu, you can also customize the use of cookies from the options of your browser. Depending on the browser, the cookie settings will be in one place or another. You can locate it if you use the "Help" function of your browser. You can also configure your browser to accept or reject all cookies by default or to receive a screen alert upon receiving each cookie and decide at that moment whether to implement it or not on your hard drive. Among the most common browsers: (...)

d).- Regarding the information provided in the "Cookie Policy":

If you access the "Cookie Policy" through the link at the bottom of the main page, the website redirects the user to a new page <https://nutrisano.es/pages/data-sale-opt-out> where information is provided about: what cookies are; what the information collected through cookies is used for; what types of cookies exist and which cookies the website uses and how to manage cookies through the browser installed on the terminal equipment.

FIFTH: On 06/19/24, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the party being claimed in accordance with the provisions of articles 63 and 64 of the LPACAP, for the alleged violation of article 22.2 of the LSSI, classified as "minor" in article 38.4 g) of the aforementioned regulation due to the deficiencies detected in its cookie policy. That is, the use of cookies that are not of a technical nature without the prior consent of the user; the impossibility of giving consent or rejecting the installation of cookies that are not.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/26

of a technical nature or to be able to perform it in a granular manner, and the impossibility of modifying consent at any time during web browsing.

In the opening agreement, it was determined that the penalty that could correspond, taking into account the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 2,000 (two thousand euros).

The notification of the initiation of the file was carried out in accordance with the rules established in the LPACAP. According to a certificate from the Postal Service, the initiation document sent via electronic notification to the Data Protection Delegate was collected on 28/06/24.

SIXTH: On 23/07/24, this Agency received a written statement of allegations regarding the initiation of the file, which indicates the following:

FIRST. That, by virtue of the Initiation Agreement, the AEPD proposes that the following infringements have been committed: 1. Installation of cookies without prior consent 2. Impossibility of rejecting or managing cookies in a granular manner 3. Lack of an option to modify consent.

SECOND. That, following the initial receipt of the complaint submitted to the AEPD, the company has shown its willingness to comply with all aspects of the regulations, making the necessary changes to comply with the regulations, among others: - The hiring of a new data protection service - Implementation of a new plugin for cookie management - Update of legal notices, Privacy Policy, and Cookie Policy.

THIRD. - That, regarding the cookies, the website used the plugin that the provider "Shopify" offered to its clients by default. However, after the notification of the Agreement, it was found that the plugin did not always function correctly, showing some programming errors. This is actually due to an external error from the entity, for which NUTRISANO is not responsible.

As a result, a review has been conducted again, and a new specific paid plugin, called "Pandectes GDPR Compliance," has been contracted, always under the premise of a willingness to fully comply with the requirements of the regulations.

FOURTH. According to the investigation, it has been verified that, upon entering the website for the first time, the following seven cookies are used directly: 1) _cmp_a; 2) Receiver-cookie-deprecation; 3) keep_alive; 4) Location; 5) secure_customer_sig; 6) _tracking__consent; 7) Popup-cookie.

Regarding the first five, the AEPD confirms that they are technical and necessary cookies and, therefore, there is no infringement concerning them. However, it considers that there are two other activity cookies by default that are not technical, a qualification with which we do not agree:

A) Regarding the cookie "_tracking__consent": The initiating resolution indicates that it is a behavioral advertising cookie, stating that "Shopify configures this cookie to store a user's preferences, provide a personalized shopping experience, and suggest related items." However, this is not true; as the name of the cookie indicates, it is aimed at storing user preferences related to privacy, more specifically, their choice in the cookie plugin. Therefore, this cookie is technical and necessary, as without it, it would not be possible to save the user's selection regarding the use of cookies.

In the Cookie Policy, it is explained as follows: "Stores the user's tracking consent preferences." This information can be verified on the website that informs about the cookies available in Shopify:

<https://www.shopify.com/legal/cookies>

B) Regarding the cookie "Popup-cookie": The AEPD indicates that it has not been able to identify the purpose of the cookie. As its name indicates, it serves to ensure that the cookie plugin has been activated, that is, that it has appeared to the user when entering the website. The privacy policy states the purpose: "Indicates whether the user has seen the cookie notice."

The initiation agreement alleges that after selecting the option <>, "it is observed that the website continues to use the same cookies detected at the beginning of the session," and this is because the cookies used at the beginning of the session are only the technical or necessary cookies. That is, if cookies are rejected, the technical cookies will continue to be used because they are necessary, although the other preference or advertising cookies will not be activated, which will only function if this type of cookie is expressly accepted.

In that case, when the <> option is clicked, it is observed that the website begins to use new cookies, apart from those initially detected at the beginning of the session, which correspond to the optional cookies.

Consequently, only cookies with technical and necessary purposes are used when the user enters the website and has not given their express consent for other types of cookies, in accordance with the provisions of Article 22.2 of the LSSI and in Opinion 4/2012 of the GT29.

FIFTH. That indeed, the previous installed plugin did not allow for granular management of cookies. However, the new plugin does allow for the following three options. In the same place where the cookie plugin or pop-up first appears, the logo of a cookie is maintained, which users can click to re-enter the cookie menu. In this menu, they will find the following options: - "Accept all": through this large button, the user is allowed to accept all types of cookies in a straightforward manner.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

8/26

simple and direct. - "Reject all": through this large button, the user is allowed to reject cookies in one step. - "Preferences": by clicking on this option, a panel opens that allows the user to accept or reject cookies in a granular manner. All options are pre-checked.

SIXTH - We acknowledge the error and consider it to have been an incident of a technical nature (not allowing granular selection and not allowing subsequent modification of consent). It is, therefore, a specific and unintentional error due to an isolated failure.

The default Shopify plugin itself ensured compliance with the regulations; however, it subsequently generated several programming failures that prevented full compliance.

Regarding the cookies actually used, we believe that there has been no violation of privacy or personal data, as only technical and necessary cookies have been used without the express consent of the user.

SEVENTH. All necessary immediate corrective and preventive measures have been adopted to resolve the problem as soon as it became known.

We insist that the intention is to comply at all times with the regulations and to always respect the rights and freedoms of all users. Therefore, there has been no bad faith, and there is a genuine

commitment to regulatory compliance.

EIGHTH. Consequently, we request that the AEPD apply the doctrine that it routinely establishes in many other resolutions, by virtue of the Judgment of December 1, 2006, of the National Court (among others: E/07296/2020; E/04518/2021; E/08765/2020), whereby: "It must be emphasized that this simple non-compliance cannot be understood as objective responsibility in administrative sanctioning law. Indeed, in sanctioning matters, the principle of culpability applies (SSTC 15/1999, of July 4; 76/1990, of April 26; and 246/1991, of December 19), which means that some form of intent or fault must be present. As stated in the Supreme Court ruling of January 23, 1998, "... there can be said to be a decisive line of jurisprudence that rejects objective responsibility in the sanctioning sphere of the Administration, requiring the concurrence of intent or fault, in line with the interpretation of STC 76/1990, of April 26, stating that the principle of culpability can be inferred from the principles of legality and prohibition of excess (Article 25 of the Constitution) or from the inherent requirements of the Rule of Law." Therefore,

I REQUEST the Spanish Agency for Data Protection to consider these allegations as presented, and after admitting them, based on the principle of culpability and the demonstrated good faith and willingness to comply with regulations by MAXPOWER FITNESS NUTRITION, S.L., to archive this sanctioning procedure or, alternatively, to reduce the proposed sanction to the minimum possible, considering the technical and isolated nature of the incident and the corrective and preventive measures adopted.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

9/26

On 09/17/24, the following characteristics of the "Cookie Policy" of the website <https://nutrisano.es/> are obtained and recorded:

a).- Regarding the use of cookies before the user gives their consent:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without accepting new cookies or taking any action on the website, it has been verified that the following cookies are used:

Technical or necessary cookies:

cookies

Domain

Description

_cmp_a

.nutrisano.es

Used to store the user's consent preferences.

receiver-cookie-deprecation

.nutrisano.es

Used to indicate to the website owner the deactivation of cookies received by the system.

keep_alive

.nutrisano.es

Used to keep a user's session active on a website.

Location

nutrisano.es

Stores the user's preferences regarding language and region.

secure_customer_sig

nutrisano.es

Related to the customer's login.

Behavioral Advertising or Orientation Cookies:

cookies

Domain

Description

_tracking_consent

nutrisano.es

Shopify sets this cookie to store a user's preferences.

Cookies whose function has not been identified:

10/26

cookies

Domain

Clarifying Notes

Popup-

cookie

nutrisano.es

It seems, by its name, to be related to the management of pop-up windows on the website. This type of cookie is usually used to remember if a user has already seen or interacted with a particular pop-up, in order to avoid showing it repeatedly during the same session or on future visits.

b).- About the cookie information banner on the first layer:

Upon entering the website for the first time, after clearing the terminal equipment of browsing history and cookies, without taking any action on the webpage, a cookie information banner appears at the bottom of the main page with the following message:

This website uses cookies to ensure you get the best experience. <>.

<>

<>

<>

If you choose to reject cookies (<>), it is checked that the website, in addition to continuing to use the cookies detected at the beginning of the session, starts to use a new cookie:

cookies

Domain

Description

receive-

cookie-

deprecation

nutrisano.es

Its mission is to register and manage the rejection of consent for the installation of non-essential cookies.

If you choose to manage cookies granularly, by clicking on the <> option, a control panel is displayed where it is observed that the groups of cookies are pre-checked in the "OFF" position (disabled):

If you wish to not give consent to the use of cookies that are not of a technical nature, by clicking on the <> option without having selected any of the cookie groups, it is checked that the website continues to use the same cookies detected at the beginning.

If you wish to give consent to the use of cookies that are not of a technical nature, by clicking the <> option located in the initial information banner or in the control panel, moving the sliders of the cookie groups from the "OFF" position to the "ON" position and clicking <>, it is observed that the website starts to use cookies, both first-party and third-party (whose provider is "Shopify" although they appear on the website under the domain of "nutrisano.es"):

cookies

Domain

Description

_pandectes

_gdpr

.nutrisano.es

Its mission is to manage the user's consent status regarding the use of cookies on the website, in

compliance with GDPR regulations. This cookie is technical and does not require consent, as its purpose is to remember and apply the user's choices regarding the use of other cookies that do require consent.

_shopify_s
.nutrisano.es

It has a dual mission: to manage the user's session in the online store, ensuring that the website functions correctly during browsing (technical function) and to collect analytical data about user behavior to optimize the online store and improve the customer experience (analytical function). Since it is also used for analytical and tracking purposes, it requires user consent to be installed.

_shopify_sa_p
.nutrisano.es

Its mission is to track user behavior regarding advertising campaigns and social content, as well as to collect marketing analytical data. This cookie requires user consent, as its use focuses on tracking and analyzing behavior to optimize advertising and marketing strategies for online stores.

_shopify_sa_t
nutrisano.es

Its mission is to track user behavior regarding...

12/26

cookies

Domain

Description

user regarding advertising campaigns and retargeting strategies. It may also collect data on user interaction with social content. This cookie requires user consent before being installed, as it is primarily used for tracking and advertising analysis, classifying it as a marketing and tracking cookie.

c).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

If the user has given initial consent for the website to use cookies that are technical or necessary in nature and wishes to modify that consent at a certain point during web browsing, there is the possibility to access the control panel again through the link (a cookie logo) located at the bottom left:

If the "logo" is clicked, the cookie information banner appears again, through which the control panel can be accessed by clicking on the "preferences" option:

If the "reject all" option is clicked now, it is observed that the website continues to use the same cookies detected when consent was given. That is, the website does not disable the cookies; they remain present on the device:

d).- Regarding the information provided in the "Cookie Policy":

If the "Cookie Policy" is accessed through the link at the bottom of the main page, the website redirects the user to a new page <https://nutrisano.es/pages/data-sale-opt-out> with the following information:

"As described in our Privacy Policy, we collect personal information from your interactions with us and our website, including through cookies and similar technologies. We may also share this personal information with third parties, including advertising partners. We do this to show you ads on other websites that are more relevant to your interests and for other reasons described in our Privacy Policy. Sharing personal information for targeted advertising based on your interaction on different websites may be considered a "sale," "exchange," or "targeted advertising" under certain privacy laws of the U.S. states. Depending on where you live, you may have the right to opt-out of these activities. If you wish to exercise this right to voluntary opt-out, please follow the instructions below.

If you visit our website with the opt-out preference signal from the Global Privacy Control activated, we will treat this, depending on your location, as a request to opt-out of any activity that may be considered a "sale" or "exchange" of personal information. We will also treat it as a request to opt-out of other uses that may be considered targeted advertising for the device and browser you used when visiting our website.

If you wish to opt-out of activities that may be considered "sale" or "exchange," or "targeted advertising," please send an email.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven:

PROVEN FACTS

First: According to the website <https://nutrisano.es/>, the responsible entity is MAXPOWER FITNESS NUTRITION, S.L. with NIF: B95763785.

Second: The file contains records of the characteristics of the "Cookie Policy" of the website <https://nutrisano.es/> obtained and processed on 23/05/24:

a).- Regarding the use of cookies before the user gives their consent:

- Technical nature cookies: "_cmp_a"; "receiver-cookie-deprecation"; "keep_alive"; "Location" and "secure_customer_"
- Behavioral Advertising or Targeting cookies: "_tracking_consent"
- Cookies whose function has been identified: "Popup-cookie"

b).- Regarding the granting of consent for the use of cookies that are not technical in nature:

- If all cookies are opted to be rejected ("Reject") in the initial banner, it is observed that the website continues to use the same cookies detected at the beginning of the session.
- If the option to manage cookies granularly ("Manage preferences") is chosen in the initial banner, a control panel is displayed where it is observed that the cookie groups are not pre-checked, but if it is desired not to use any cookie that is not technical in nature, clicking on the "Reject all" option without having selected any of the cookie groups in this control panel, it is observed that the website continues to use the same cookies detected at the beginning of the session.

c).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

14/26

- If the user has given initial consent for the website to use cookies that are non-technical or necessary in nature and wishes to modify that consent during web browsing, there is NO possibility to access the cookie control panel again to modify the consent, as there is no permanent link that allows it.

d).- Regarding the information provided in the "Cookie Policy":

- If the "Cookie Policy" is accessed, information is provided about: what cookies are; the purpose of the information collected through cookies; what types of cookies exist and which cookies are used by the website and how to manage them through the browser installed on the terminal device.

Third: It is recorded in the file the characteristics of the "Cookie Policy" of the website

<https://nutrisano.es/> obtained and processed on 17/09/24:

a).- Regarding the installation of cookies on the terminal device prior to consent:

- Technical cookies: "_cmp_a"; "receiver-cookie-deprecation"; "keep_alive"; "Location" and "secure_customer_"
- Targeting or Behavioral Advertising cookies: "_tracking_consent"
- Cookies whose function has been identified: "Popup-cookie"

b).- Regarding the granting of consent for the use of cookies that are not technical in nature:

- If the option to reject cookies (<>) is chosen in the initial banner, it is verified that the website continues to use the cookies detected at the beginning.
- If the option to manage cookies granularly is chosen by clicking on the <> option, a control panel is displayed where it is observed that the groups of cookies are pre-checked in the "OFF" position (disabled): If consent is not to be given for the use of cookies that are not technical in nature, by clicking on the <> option without having selected any of the cookie groups, it is verified that the website continues to use the same cookies detected at the beginning.
- If consent is to be given for the use of cookies that are not technical in nature, by clicking the <> option located in the initial information banner or in the control panel, moving the sliders of the cookie

groups from the "OFF" position to the "ON" position and clicking <>, it is observed that the website begins to use cookies, both its own and third-party cookies (whose provider is "Shopify" although they appear on the website under the domain of "nutrisano.es"):

c).- Regarding the possibility of modifying the consent given about cookies at any time during web browsing.

- If the user has given initial consent for the website to use cookies that are technical or necessary in nature and wishes to modify that consent at a certain moment during web browsing, there is the possibility to access the control panel again through the link (a cookie logo) located at the bottom left.
- If the "logo" is clicked, the cookie information banner appears again, through which access to the control panel can be obtained by clicking on the <> option.
- If now the <> option is clicked, it is observed that the website continues to use the same cookies detected when consent was given. That is, the website does not disable cookies that are not technical or necessary; they remain present on the terminal.

d) Information provided in the "Cookie Policy":

- It has been verified that the "Cookie Policy" does not include information about: the definition and generic function of cookies; the type of cookies used and their purpose; how to accept, deny, or revoke consent for the use of cookies; it does not identify who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties; how to accept, deny, or revoke consent for the use of cookies and about the retention period.

LEGAL GROUNDS

I

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Response to the allegations presented.

First: In section "fourth" of its written allegations, the entity being claimed argues that the cookie "_tracking_consent" is incorrectly classified as a targeting or behavioral advertising cookie because, they claim, this cookie

16/26

has a technical purpose as it stores the user's preferences regarding privacy, particularly their choice in the cookie consent plugin, which exempts it. Furthermore, it indicates that this information is supported by the "Shopify" Cookie Policy and verifiable public sources.

Well, let us begin by stating that the name of the cookie "_tracking_consent" can be quite descriptive as it suggests that it is related to the management or storage of consent for user tracking on the website. This type of cookie is generally used to record whether a user has granted consent for the use of tracking cookies, which may include advertising or data analysis cookies.

If the cookie is used solely to store consent, it does not require direct consent, as it is not a cookie that tracks or stores personal information by itself. However, if it is related to other tracking or user behavior analysis processes, then it would require consent.

If we observe the value of the cookie before the user grants consent, it is:

```
{"con":{"CMP":{"a":"","m":"","p":"","s":""},"v":"2.1","region":"ES","reg":"GDPR"}}
```

"con" (Consent): This field refers to the user's "consent." Within this object, there appears to be a substructure called "CMP."

"CMP" (Consent Management Platform): CMP is an acronym used to refer to Consent Management Platforms, which are services that manage user consent in accordance with privacy legislation, such as the GDPR. Within this CMP object, we find several subkeys:

"a" (advertising): related to consent for receiving advertisements or for tracking for advertising purposes.

"m" (marketing): linked to consent for marketing activities.

"p" (personalization): refers to the personalization of content or advertising based on user data.

"s" (tracking or statistics): related to tracking statistics or data analysis.

All these fields are empty (""), indicating that a value has not yet been established, or that the user has not given explicit consent for any of these categories.

"v" (version): "2.1" indicates the version of the consent structure.

"region": "ES": This field indicates the region in which the user is located.

"reg": "GDPR": The "reg" field refers to the privacy legislation under which the user's consent is being managed, which in this case is the GDPR (General Data Protection Regulation).

The general interpretation of the cookie value is that it has a default empty consent state, in which the user's consent has not yet been given or recorded for any of the cookie categories that may be related to advertising, marketing, personalization, or tracking. The value is recorded under the GDPR regulations in the specific region of Spain.

Now, if the user has not granted consent for the use of non-technical or necessary cookies by rejecting their use in the initial banner, it is observed that the cookie in question now has the following value:

```
{"con":{"CMP":{"a":"0","m":"0","p":"0","s":""},"v":"2.1","region":"ESCL","reg":"GDPR"}
```

"con" (Consent): This remains the object that contains the user's decisions regarding consent. Within "CMP" (Consent Management Platform), we now see some updated values:

"a": "0" (advertising)**: The value "0" here means that the user has rejected consent for advertising-related cookies.

"m": "0" (marketing)**: Similarly, the value "0" indicates that the user has rejected cookies related to marketing activities.

"p": "0" (personalization)**: The value "0" in this field indicates that the user has rejected consent for cookies that allow content or advertising personalization.

"s": "" (statistics or tracking): This field remains empty, which may indicate that no decision has been recorded for this type of cookie, or that they are not active in this specific case.

In summary, the user has explicitly rejected cookies related to advertising, marketing, and personalization.

"v" (version): The value "v": "2.1" remains the same.

"region": "ESCL": Here we see an interesting change. The value "ESCL" likely refers to Spain (ES) and the Canary Islands (CL).

"reg": "GDPR": This field continues to indicate that the applicable regulation is the GDPR, which is consistent with EU data protection regulations.

Therefore, from the analysis of the cookie, it follows that the values of "0" in the fields of "a," "m," and "p" confirm that the user has rejected consent for the

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

18/26

installation of cookies related to advertising, marketing, and personalization. The

field "s" is empty, which may indicate that consent for tracking/statistics has not been requested or that a response has not been recorded.

Regarding the cookie "Popup-cookie":

The defendant claims that its purpose is technical, as it ensures that the cookie notice has been shown to the user upon entering the website. The AEPD did not identify its purpose, but the Privacy Policy specifies that it indicates whether the user has seen said notice. Furthermore, it is argued that, after rejecting all cookies, only technical or necessary cookies remain active, complying with the LSSI and

Opinion 4/2012 of the GT29, without activating preference or advertising cookies without consent. Well, the cookie "popup-cookie" seems, by its name, to be related to the management of pop-up windows on the website. This type of cookie is usually employed to remember if a user has already seen or interacted with a particular pop-up, in order to avoid showing it repeatedly during the same session or on future visits.

If the cookie "popup-cookie" is used solely to manage the behavior of the pop-up and improve the user experience (for example, to avoid showing the same pop-up repeatedly in the same session or in subsequent visits), it could be considered a technical cookie as it does not track the user beyond what is strictly necessary to provide the basic functionality of the site, such as remembering if the user has already closed a pop-up and not reopening it.

However, if the cookie "popup-cookie" has a function beyond the management of the pop-up itself and is used to perform some type of tracking or to display personalized content on future visits (such as personalized ads within the opened pop-up), then it would require user consent. This would apply if it is used to analyze how users interact with the pop-ups in a way that involves tracking behavior or preferences over time.

If we observe the value of the cookie before the user gives consent for the use of non-technical or necessary cookies, its value is "true," which may indicate that the pop-up has already been shown to the user, preventing it from appearing again during the same session or on future visits. It is a way of marking that the user has interacted with the pop-up (emergency window).

Therefore, if the cookie "popup-cookie" simply saves the state of whether the pop-up has already been shown or closed, this can be considered a technical behavior, necessary to improve the user experience. As such, it would not require explicit consent, as its purpose is functional and does not involve tracking the user for advertising or analytical purposes.

Well, once it has been verified that the cookies "_tracking__consent" and "popup-cookie" in question in this sanctioning file may have a strictly technical purpose and therefore do not need consent or also

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

19/26

they can act as cookies that require consent, it would be ideal to verify the cookie policy of the page for more details on the specific use of these cookies on that website. However, in this case, when accessing the "Cookie Policy" of the website www.nutrisano.es (<https://nutrisano.es/pages/data-sale-opt-out>), it has been observed that there is no information regarding them. Only the following information exists:

"Do not sell or share my personal information.

As described in our Privacy Policy, we collect personal information from your interactions with us and our website, including through cookies and similar technologies. We may also share this personal information with third parties, including advertising partners. We do this to show you ads on other websites that are more relevant to your interests and for other reasons described in our Privacy Policy. Sharing personal information for targeted advertising based on your interaction on different websites may be considered "sale," "exchange," or "targeted advertising" under certain privacy laws of U.S. states. Depending on where you live, you may have the right to opt-out of these activities. If you wish to exercise this right to opt-out, please follow the instructions below.

If you visit our website with the opt-out preference signal from the Global Privacy Control activated, we will treat this, depending on your location, as a request to opt-out of any activity that may be considered a "sale" or "exchange" of personal information. We will also treat it as a request to opt-out of other uses that may be considered targeted advertising for the device and browser you used when visiting our website.

If you wish to opt-out of activities that may be considered "sale" or "exchange," or "targeted advertising," please send an email."

Therefore, regarding the cookies named "_tracking__consent" and "popup-cookie," and after the analysis carried out as stated above, they could be considered strictly technical in nature, in which

case they would not require user consent for their implementation. However, since they may also be used for purposes other than strictly technical ones, it is possible that in certain cases they may indeed require such consent. For this reason, and in order to ensure transparency and proper compliance with current regulations, the specific purpose for which the cookies are used must be certified.

However, in the review conducted on 09/17/24 regarding the "Cookie Policy" on the website

<https://nutrisano.es/pages/data-sale-opt-out>, no information has been found that certifies the purposes of the cookies used by the website, which would lead to the presumption that these cookies exclusively fulfill a technical function, as claimed by the respondent, and therefore do not require the explicit consent of the user for their use.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

20/26

Second: In point "five" of its written allegations, the respondent acknowledges that the previous installed plugin did not allow for granular cookie management but that it has now been modified, and the new plugin allows for granular cookie management, offering three options: "Accept all," "Reject all," and "Preferences." Well, in the verification carried out by this Agency on 17/09/24, it was observed that if one opts to manage cookies granularly by clicking on the "preferences" option in the cookie information banner on the main page, a control panel is displayed where it is noted that the cookie groups are pre-checked in the "OFF" (deactivated) position. If one wishes not to give consent to the use of cookies that are not of a technical nature, by clicking on the "Reject All" option without having selected any of the cookie groups, it is verified that the website continues to use the same cookies detected at the beginning, and if one wishes to give consent to the use of cookies that are not of a technical nature, by clicking the "Accept" option or moving the sliders of the cookie groups from the "OFF" position to the "ON" position and clicking "Save Preferences," it is observed that the website begins to use new cookies (whose provider is "Shopify" even though they appear on the website under the domain "nutrisano.es"): "_pandectes"; "_gdpr"; "_shopify_s"; "_shopify_sa_p" and "_shopify_sa_t." The respondent further indicates at this point that users can return to the control panel by clicking on the permanent cookie icon located at the bottom left of the website to easily and directly adjust their preferences at any time during web navigation.

However, it has been verified that if the user has given initial consent for the website to use cookies that are of a technical or necessary nature and wishes, at a certain moment during web navigation, to modify that consent, although there is the possibility of accessing the control panel again through the "cookie logo" link, if "Reject All" is now clicked, it is observed that the website continues to use the same cookies detected when consent was given. That is, the website does not disable cookies that are not technical or necessary, as they remain present on the terminal equipment.

Third: The respondent states in point "seven" of its written allegations that all necessary corrective and preventive measures have been adopted to resolve the issues and that there has never been any bad faith as there is a genuine commitment to regulatory compliance.

Well, during the visit conducted and documented by this Agency to the website www.nutrisano.es on the past day 17/09/24, new deficiencies were detected in the "Cookie Policy" of the website. Namely:

a).- Regarding the installation of cookies on the terminal equipment prior to consent, especially concerning the cookies "_tracking_consent" and "Popup-cookie," although, as has been seen, they may have a technical purpose, there is no information about them in the website's "Cookie Policy" that certifies their technical nature.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

21/26

b).- Regarding the existing cookie information banner on the first layer (main page), containing the following information: "This website uses cookies to ensure you get the best experience," it does not

identify the purposes of the cookies that will be used; it does not inform whether the cookies to be used are first-party (from the website owner) or also from third parties associated with it, and it does not generically inform about the type of data that will be collected and used in case user profiles are created.

c).- Regarding the possibility of modifying the consent given for cookies at any time during web browsing, it has been detected that if the user has initially given consent for the website to use cookies that are technical or necessary in nature and wishes to modify that consent at a certain point during web browsing, there is now the possibility to access the control panel again. However, if consent for the use of non-technical or non-necessary cookies is now desired to be withdrawn, the installed cookies remain present.

d) Information provided in the "Cookie Policy" of the website, mentioned earlier, does not include information about: the definition and generic function of cookies; information about the type of cookies used and their purpose; information on how to accept, deny, or revoke consent for the use of cookies; identification of who uses the cookies, that is, whether the information obtained by the cookies is processed only by the publisher and/or also by third parties; information on how to accept, deny, or revoke consent for the use of cookies; if applicable, information about data transfers to third countries carried out by the publisher and the retention period of the data.

III

Classification of the possible infringement committed

Therefore, the deficiencies that are still present regarding the cookie policy on the website <https://nutrisano.es/>, concerning the initiation of the file, may constitute a violation of Article 22.2 of the LSSI, as it establishes the following:

"Service providers may use data storage and retrieval devices on the terminal equipment of the recipients, provided that they have given their consent after being provided with clear and complete information about their use, in particular, regarding the purposes of data processing, in accordance with the provisions of Organic Law 15/1999, of December 13, on the protection of personal data. When technically possible and effective, the recipient's consent to accept data processing may be provided through the appropriate parameters of the browser or other applications.

The above shall not prevent the possible technical storage or access solely for the purpose of transmitting a communication over an electronic communications network or, to the extent that it is strictly necessary."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
22/26

necessary, for the provision of an information society service expressly requested by the recipient."

IV.

Graduation of the Sanction

This Infraction is classified as "minor" in Article 38.4 g) of the aforementioned Law, which considers as such: "Using storage and data retrieval devices when the information has not been provided or the consent of the service recipient has not been obtained in the terms required by Article 22.2.", and may be sanctioned with a fine of up to €30,000, in accordance with Article 39 of the aforementioned LSSI.

The LSSI, in its Article 40, establishes the "graduation of the amount of the sanctions", taking into account the following criteria: a) The existence of intent. b) The period of time during which the infraction has been committed. c) The recurrence of infractions of the same nature, when declared by a firm resolution. d) The nature and amount of the damages caused. e) The benefits obtained from the infraction. f) The volume of billing affected by the committed infraction. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infraction, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent authority or authorities.

Based on the evidence obtained, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established by Article 40 of the LSSI:

- The existence of intent (section a). This expression must be interpreted as equivalent to the degree of culpability according to the Judgment of the National Court of 12/11/07 in Case No. 351/2006, as the responsibility of the entity claimed lies in the absence of an adequate system to the LSSI on its website.

In view of the above, the following

PROPOSAL FOR RESOLUTION

First: That the Director of the Spanish Agency for Data Protection sanctions the entity, MAXPOWER FITNESS NUTRITION, S.L. with NIF: B95763785, owner of the website <https://nutrisano.es/> for the infraction of Article 22.2 of the LSSI, classified as "minor" in Article 38.4 g) of the same regulation with a sanction of €2,000 (two thousand euros).

Second: Likewise, in accordance with the provisions of Article 85.2 of the LPACAP, it is informed that it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will entail a reduction of 20% of the amount of this.

With the application of this reduction, the sanction would be established at €1,600 (one thousand six hundred euros) and its payment will imply the termination of the procedure. The effectiveness of this reduction will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that it opts to proceed with the voluntary payment of the amount specified above, in accordance with the provisions of the aforementioned Article 85.2, it must make it effective by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason, for voluntary payment, for the reduction of the amount of the sanction. Likewise, it must send the proof of payment to the General Subdirectorate of Inspection to proceed to close the file.

In accordance with the provisions of Article 76.4 of the LOPDGDD and given that the amount of the imposed sanction is greater than one million euros, the information identifying the offender, the infraction committed, and the amount of the sanction will be published in the Official State Gazette. Therefore, you are notified of the above, and you are informed of the procedure so that within TEN DAYS you may allege whatever you deem appropriate in your defense and present the documents and information you consider pertinent, in accordance with Article 89.2 of the LPACAP.

C.C.C.

THE INSTRUCTOR OF THE PROCEDURE

Index of the File EXP202317662

(...)

>>

SECOND: On November 22, 2024, the claimed party proceeded to pay the sanction in the amount of €1,600.00 making use of the reduction provided in the previously transcribed proposal for resolution.

THIRD: The claimed party has expressly waived any action or appeal in the administrative route against the sanction.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

24/26

LEGAL GROUNDS

I

Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency

for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction can be imposed along with a non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

25/26

III

Voluntary Payment

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified resolution proposal allowed for the voluntary payment of the proposed sanction, which would entail a 20% reduction of its amount. With the application of this reduction, the sanction would be set at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the aforementioned resolution proposal, and before a resolution was issued by this authority, the respondent, on November 22, 2024, proceeded to make the voluntary payment, availing themselves of the 20% reduction and renouncing any action or administrative appeal.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the high court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the resolution proposal transcribed in this resolution.

The sum of the aforementioned amounts yields a total of 2,000.00 euros.

After the respondent proceeded with the prompt payment, although without acknowledgment of responsibility, a 20% reduction of the total mentioned is applied, resulting in a final amount of 1,600.00 euros.

SECOND: TO DECLARE the termination of procedure EXP202317662, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to MAXPOWER FITNESS NUTRITION, S.L.

FOURTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment on the withdrawal or renunciation of any action or administrative appeal, the express renunciation stated by the respondent is accepted by this authority, thus precluding the filing of a discretionary appeal for reconsideration against this resolution.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

26/26

without prejudice to the possibility of resorting to the contentious-administrative jurisdiction.

Consequently, taking into account the provisions of Article 90 of the LPACAP, since there is no possibility of any administrative appeal having expressly waived it, this resolution shall be fully enforceable from the notification thereof.

However, in accordance with the provisions of Article 90.3 a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties, and the stipulations in Article 76.4 of the LOPDGDD shall not apply as indicated in the resolution proposal.

968-15012025

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the positions of President and Deputy

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es